

MS.1 Owner-Builder Exemption Walkthrough

How Mississippi's owner-builder exemption actually works — the four separate exemptions in one statute, the twelve-month limit that is not a calendar year, and the zero-dollar rule that applies to everyone you hire.

Before you use this document

This is a process reference, not legal advice. Mississippi is the hardest state in the country to write a permit guide for, because the answer genuinely changes at the county line: some counties enforce a building code and inspect your house, and others enforce none at all. Confirm every item with the office that will actually issue your permit before you rely on it. Statute text was read in the State Board of Contractors' published Residential Builders Law booklet and against the enacted bills at billstatus.ls.state.ms.us in August 2026; statutes change.

THE SHORT VERSION

Mississippi requires a State Board of Contractors license to build houses for other people. Building your own is not that, and the Residential Builders Law says so in one plain sentence: the chapter "*shall not apply to ... any person who undertakes construction or improvement on his own residence, or who acts as his own general contractor in the performance of construction or improvement on his own residence.*" No dollar cap, no square-footage limit, no state affidavit form, no holding period.

Miss. Code Ann. § 73-59-15(1)(b), Residential Builders and Remodelers, Title 73, Chapter 59. Read in the State Board of Contractors' Residential Builders Law booklet, August 2026.

The exemption at a glance

Question	Mississippi's answer
Is there a project-cost threshold on me?	No. The \$50,000 figure everyone quotes defines who is a residential builder — someone building for <i>another person</i> for compensation. It is not a ceiling on your own house. You may build a \$900,000 home for yourself unlicensed
Must you own the land?	The exemption is written around " his own residence. " Have the deed recorded in your name before you apply — the permit office is required to see evidence that you are exempt
Must you live in it?	Paragraph (b) says "own residence," and the separate paragraph (d) exemption adds " will not be for sale, rent, public use or public assembly. " Build the home you mean to live in and both are satisfied
How many can you build?	One in any twelve months — and the statute says "within a period of one (1) year," which is a rolling window, not a calendar year. See the section below; this is the most misquoted line in Mississippi owner-building

The exemption at a glance

Question	Mississippi's answer
What do you file?	No state form exists. The building official is the one under a duty — they must refuse your permit unless you furnish evidence you are licensed <i>or exempt</i> . What counts as evidence is set locally (§ 73-59-17)
Can you hire subs?	Yes — and here is the sting. Your exemption is yours alone. For electrical, plumbing, mechanical and HVAC, anyone you hire must hold a state license no matter how small the job is . Not \$10,000. Zero

FOUR EXEMPTIONS IN ONE SECTION — AND THEY ARE NOT THE SAME

Section 73-59-15 lists seven exemptions. **Four of them can apply to an owner-builder**, they carry different conditions, and only two of them are capped at one house a year. Most guides quote one and miss the rest, which is how readers end up believing Mississippi is stricter than it is.

The four that can cover an owner-builder

Exemption	What the statute actually says	Limit
(1)(b) Your own residence	"Any person who undertakes construction or improvement on his own residence, or who acts as his own general contractor ..." This is your exemption. No cost cap and no not-for-sale wording inside the paragraph itself	Capped by (2): one a year
(1)(c) For a relative	Building, or acting as GC, where the owner is "related to such person by consanguinity or direct affinity" and the property "will not be for sale, rent, public use or public assembly." Covers building for a parent or child who will live there	Capped by (2): one a year
(1)(d) Owner in charge	"The owners of property who supervise, superintend, oversee, direct or in any manner assume charge of the construction ... on such property for use by such owner and which will not be for sale, rent, public use or public assembly"	Not capped by (2)
(1)(g) No-permit county	"Any person who constructs two (2) single residences or less within a period of one (1) year in any county or municipality which does not require a building permit or any local certification ..., provided that the person is not building the residences for sale"	Two a year

Read (1)(d) and (1)(g) before you assume you are capped at one

Subsection (2) — the one-a-year cap — names only "*a person specified in subsection (1)(b) or (c).*" **Paragraph (d) is not in that list.** An owner who assumes charge of construction on their own property, for their own use, not for sale or rent, is exempt under (d) and subsection (2) does not reach them by its terms.

And paragraph (g) runs the other way: in a county or municipality that **does not require a building permit**, anyone building not-for-sale gets **two** residences in a year, not one. Mississippi wrote a no-permit-jurisdiction exemption directly into its licensing law — which tells you how normal no-code counties are here.

None of this is permission to run a building business out of the exemptions. If you are building one home to live in, rely on (1)(b), stay inside the twelve months, and treat (d) and (g) as the belt to that pair of braces.

Miss. Code Ann. § 73-59-15(1)(b), (c), (d), (g) and § 73-59-15(2), quoted verbatim. Verified August 2026.

THE ONE-A-YEAR RULE — AND WHY "CALENDAR YEAR" IS WRONG

This is the single most misquoted sentence in Mississippi owner-building, and getting it wrong costs you a build season. The statute reads: "*A person specified in subsection (1)(b) or (c) shall not make more than one (1) application for a permit to construct a single residence or shall not construct more than one (1) single residences **within a period of one (1) year.***"

A rolling twelve months, not January to December

"**Within a period of one (1) year**" is a rolling window measured from your last permit application or completed residence. It is not the calendar. Guides that print "one dwelling per calendar year" are describing a rule Mississippi did not write, and the difference is real: under a calendar-year reading you could pull a permit in December and another in January. Under the words actually in the statute, that is two applications inside one year and the presumption attaches.

The second sentence supplies the machinery: "*There shall be a **rebuttable presumption** that such person intends to construct for the purpose of sale, lease, rent or any similar purpose if more than one (1) application is made for a permit to construct a single residence or if more than one (1) single residences is constructed within a period of one (1) year.*" Being presumed to build for sale drops you into the definition of a **residential builder** in § 73-59-1(b) — someone who "constructs a building or structure **for sale** for use by another as a residence" — and that person needs a license.

Rebuttable is the operative word. It is a presumption, not a bar: you are entitled to show the second house was genuinely for your own use, or for a relative under (1)(c). Keep the evidence that proves it — a homestead exemption filing, a construction loan in your name, a change of address, utility accounts.

Miss. Code Ann. § 73-59-15(2); definition of "residential builder" at § 73-59-1(b). Verified August 2026.

WHAT YOU HAVE TO SHOW THE PERMIT COUNTER

There is no statewide owner-builder affidavit in Mississippi. What there is, is a duty running the other way — **on the building official, not on you**. The clerk at the counter is required by statute to ask.

The building official must refuse a permit unless you prove one of two things

*"The building official, or other authority charged with the duty of issuing building or similar permits, of any municipality or county, **shall refuse to issue a permit** for any undertaking which would classify the applicant as a residential builder or remodeler under this chapter **unless the applicant has furnished evidence that he is either licensed as required by this chapter or exempt from the requirements of this chapter.**"*

So you will be asked to prove your exemption, and the statute does not say what proof looks like — that is set locally. In practice the counter wants a **recorded deed in your name** and a signed statement that the home is for your own use. Some offices have their own homeowner affidavit; some will ask you to sign the permit application itself. Ask which, before you drive there, and write the answer into MS.4.

The same section obliges the official to *"report to the board the name and address of any person who, in his opinion, has violated this chapter."* The counter is not adversarial — but it is a reporting channel to the Board, which is a good reason to be straightforwardly accurate about what you are building and why.

Miss. Code Ann. § 73-59-17, quoted verbatim. Separately, § 73-59-18 requires residential contractors to hold a Department of Revenue permit under § 27-65-27 before obtaining a building permit — and says in terms that "a residential contractor is not a person building, repairing or renovating his or her own residence," so it does not reach you.

THE ZERO-DOLLAR RULE — WHAT EVERY GUIDE GETS WRONG

Search for Mississippi trade licensing and you will be told, over and over, that residential electrical, plumbing and HVAC work needs a state license **"when the job exceeds \$10,000."** That is wrong, and it is wrong in the direction that gets owner-builders in trouble.

Where the \$10,000 figure really comes from — and what the statute says

\$10,000 is the REMODELER threshold. Section 73-59-1(c) defines a "remodeler" as someone who, for compensation, undertakes *"the construction, or superintending of the construction, of improvements to an existing residence when the total cost of the improvements exceeds Ten Thousand Dollars (\$10,000.00)."* It is a threshold about **remodeling someone else's house**. It has nothing to do with the trades.

The trades have no threshold at all. Section 73-59-3(1) lists who must be licensed by the Board, and paragraph (d) reaches *"any subcontractor, **of any tier**, performing the following work or within the following trade, on any residential construction or residential improvement project, **no matter the dollar amount of the construction or improvements:** (i) Electrical; (ii) Plumbing; (iii) Mechanical; and/or (iv) Heating, ventilation and/or air conditioning."*

Read "no matter the dollar amount" literally, because it is meant literally. The electrician who sets your temporary power pole for \$700 needs a state license. So does the plumber who ties in a single fixture, and the HVAC contractor who hangs one condenser. And "of any tier" closes the other door: it is not enough that the company you hired is licensed if they push the work down to an unlicensed crew.

Your exemption does not travel to them. Section 73-59-15 exempts *you*, the person building your own residence. It does not exempt the people you pay. Verify every trade contractor's license with the Board before they start — the Board publishes a license search at **msboc.us** — and write the verification date into the checklist below.

Miss. Code Ann. § 73-59-3(1)(d) and § 73-59-1(c), quoted verbatim from the State Board of Contractors' Residential Builders Law booklet (msboc.us → Laws), August 2026.

And the one you would never guess: hiring a "construction manager"

If you bring in a consultant to run your build for you — someone who is not a licensed builder but who takes a fee to manage the job — **they need a license too.** Section 73-59-3(1)(c) licenses anyone *"acting in the capacity as a construction manager through a contract or an agreement with the owner of the property being improved or constructed upon."*

And the definition anticipates exactly your situation. A construction manager is *"any person or entity, **other than a residential builder, remodeler or owner**, who has a contract or agreement with the owner of the property ..., **no matter if that owner himself is the general contractor or a holder of a building permit.**"* You are excluded by name — the owner is never their own construction manager. But the person you hire to stand in your shoes is not excluded.

Miss. Code Ann. § 73-59-3(1)(c); definition at § 73-59-1(h).

DOING YOUR OWN ELECTRICAL, PLUMBING AND HVAC

Chapter 59 does not reach you here, and it is worth being precise about why. The trade licensing requirement in § 73-59-3(1)(d) is written for **"any subcontractor, of any tier"** — you are not a subcontractor of anyone on your own house. And § 73-59-15(1)(b) says the **chapter** — all of it, including § 73-59-3 — "shall not apply" to a person undertaking construction on their own residence. **The State of Mississippi does not require you to be a licensed electrician to wire your own home.**

But the state is not the only government involved

Counties and municipalities have independent statutory authority to adopt building, plumbing, electrical, gas and sanitary codes — counties under Miss. Code Ann. § 19-5-9 (and only for the **unincorporated** areas of the county), municipalities under § 21-19-25. A local code can carry its own rules about who may pull a trade permit and who may do the work, and some Mississippi jurisdictions do restrict homeowner electrical, gas and mechanical work on life-safety grounds even on an owner-occupied home.

This kit will not tell you that your city allows it, because that is not a statewide fact and anyone who tells you otherwise is guessing. **Ask before you buy wire**, get the answer from the office that issues the permit, and record it in MS.4. If no local code has been adopted on your parcel at all — which is common in Mississippi — then there is no local rule to break, and your own competence is the only thing standing between you and a house fire. Build to the code anyway.

QUALIFICATION CHECKLIST — WORK THIS BEFORE YOU APPLY

Every line below is a condition Mississippi law imposes or a fact the permit counter is required to ask you about. Work down it with a pen. If you cannot check a box, resolve it before you file — not after.

Step 1 — Ownership and intent

	Item	Date	Notes / evidence
☐	Deed recorded in your name before the permit application date — the exemption is written around "his own residence" Recorded: _____ Parcel ID: _____		
☐	You intend the finished home for your own use — not as a rental, spec house, or flip. Paragraph (1)(d) puts it as "will not be for sale, rent, public use or public assembly"		
☐	No other residence permit applied for, and no other residence completed, in the previous twelve months — a rolling year, not the calendar (§ 73-59-15(2)) Last permit date: _____		
☐	You can evidence your intent if the Board ever asks: homestead exemption filing, construction loan in your name, address change, utility accounts in your name		

Step 1 — Ownership and intent

	Item	Date	Notes / evidence
☐	You have asked the permit office what it accepts as "evidence ... that he is ... exempt" under § 73-59-17, and have that item ready Asked on: _____ They accept: _____		

Step 2 — Everyone you are paying

	Item	Date	License # / verified
☐	Electrical: contractor holds a current State Board of Contractors license — required no matter the dollar amount		
☐	Plumbing: contractor licensed — same zero-dollar rule		
☐	Mechanical / HVAC: contractor licensed — same zero-dollar rule		
☐	Any tier below them: you have asked each trade contractor whether they will subcontract any part of the work, and to whom — § 73-59-3(1)(d) reaches subcontractors "of any tier"		
☐	Every license verified at msboc.us before work started — not after Verified on: _____		
☐	If you have engaged anyone to manage the build for a fee, they hold a license as a construction manager (§ 73-59-3(1)(c))		
☐	Any general trades contractor building for you (rather than with you) over \$50,000 holds a residential builder license		

Step 3 — the paperwork itself (whether a building permit exists on your parcel at all, the septic and flood approvals that apply even where it does not, and everything your county adds on top) is worked in **MS.2 Permit Application Checklist**, and each document is described in **MS.5 Forms & Documents Index**.

WHAT TAKES THE EXEMPTION AWAY — AND WHAT IT COSTS

- **Building something you never intended to occupy** — a spec house, a rental, a flip. Intent to build for sale is the whole test.
- **A second residence inside twelve rolling months**, which raises the rebuttable presumption that the purpose was sale.
- **Not owning the property** the residence sits on.

If you fall outside every exemption, Mississippi's consequences are specific. Undertaking residential construction without a required license is a **misdemeanor**, and on conviction carries a fine of *"not less than One Hundred Dollars (\$100.00) and not more than Five Thousand Dollars (\$5,000.00) or ... imprison[ment] for not less than thirty (30) nor more than sixty (60) days in the county jail, or both."* The Board may separately *"issue a citation and may stop work."*

The civil consequence that actually bites

An unlicensed party who needed a license *"may not bring any action, either at law or in equity, to enforce any contract for residential building or remodeling or to enforce a sales contract,"* and may recover only *"actual documented expenses for labor, materials or both ... but only for those expenses which can be shown by **clear and convincing evidence**."*

Note which way this points for you. It is the **unlicensed contractor** who loses the right to sue — so a trade contractor working on your house without the license § 73-59-3(1)(d) requires cannot enforce their contract against you, and no profit is recoverable, only documented cost proved to a heightened standard. That is a reason to hire licensed trades, not a reason to hire unlicensed ones: a contractor with nothing to lose in court is a contractor with no incentive to finish.

None of this touches a genuine owner-builder. You are exempt, so there is no offense. It matters because it shows where Mississippi draws the line, and how sharp the edge is on the other side of it.

Sources — every Mississippi claim in this document (verified August 2026)

What this document states	Authority
The owner-builder exemption: the chapter does not apply to a person building, or acting as their own general contractor on, their own residence — with no cost cap	§ 73-59-15(1)(b)
The relative exemption (consanguinity or direct affinity, not for sale or rent); the owner-in-charge exemption; and the two-residence exemption in a jurisdiction that requires no building permit	§ 73-59-15(1)(c), (d), (g)
One permit application or one residence "within a period of one (1) year" — a rolling twelve months — and the rebuttable presumption of building for sale. Applies to (1)(b) and (c) only	§ 73-59-15(2)

Sources — every Mississippi claim in this document (verified August 2026)

What this document states	Authority
"Residential builder" means building for sale for another, or for compensation for another over \$50,000 and not more than three floors; "remodeler" is improvements over \$10,000	§ 73-59-1(b), (c)
Electrical, plumbing, mechanical and HVAC subcontractors of any tier must be licensed "no matter the dollar amount" — there is no \$10,000 trade threshold	§ 73-59-3(1)(d)
A construction manager engaged by the owner must be licensed, and the definition excludes the owner by name	§ 73-59-3(1)(c); § 73-59-1(h)
The building official shall refuse a permit unless furnished evidence of license or exemption, and shall report suspected violations	§ 73-59-17
A person building his or her own residence is not a "residential contractor" and so needs no Department of Revenue permit	§ 73-59-18; § 27-65-27
Misdemeanor, \$100–\$5,000 and/or 30–60 days; no action to enforce the contract, and recovery limited to documented expenses proved by clear and convincing evidence; Board may cite and stop work	§ 73-59-9(1), (2), (3)
County codes may be adopted only for the unincorporated areas of the county; municipalities adopt by ordinance	§ 19-5-9; § 21-19-25

Every Mississippi Code section cited above is free to read. The Legislature's official copy is at **legislature.ms.gov** → Mississippi Code (Title 73, Chapter 59 is residential builders; Title 17, Chapter 2 is building codes; Title 41, Chapter 67 is onsite wastewater). The State Board of Contractors publishes the whole residential law and its rules as one booklet at **msboc.us** → Laws, and the Department of Health publishes the wastewater law at **msdh.ms.gov**. Enacted bills — which is how the dates and opt-out windows in this kit were checked — are at **billstatus.ls.state.ms.us**. All statute text quoted in this kit was read at those sources and verified August 2026.